

HOUSE No. 5557

The Commonwealth of Massachusetts

PRESENTED BY:

Margaret R. Scarsdale

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act amending the sick leave bank for Matthew McRae, an employee of the department of state police.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>4/9/2026</i>

HOUSE No. 5557

By Representative Scarsdale of Pepperell, a petition (subject to Joint Rule 12) of Margaret R. Scarsdale for legislation to amend the sick leave bank for Matthew McRae, an employee of the Department of State Police. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act amending the sick leave bank for Matthew McRae, an employee of the department of state police.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to amend the sick leave bank established for a certain employee of the department of state police, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 49 of the acts of 2023 is hereby amended by striking out all after
2 the enacting clause and inserting in place thereof the following:-

3 (a) Notwithstanding any general or special law to the contrary, the department of state
4 police shall establish a sick leave bank for Matthew McRae, an employee of the department.

5 (b) Any employee of the department may voluntarily contribute 1 or more sick, personal
6 or vacation days to the sick leave bank for use by Matthew McRae.

7 (c) Notwithstanding any provision of any general or special law, rule or collective
8 bargaining agreement to the contrary, Matthew McRae shall not be required to exhaust accrued

sick, personal or vacation time as a condition of drawing upon the sick leave bank established under this act. Matthew McRae shall continue to earn and accrue contractual sick, personal, pension benefit accrual, any post employment benefit and vacation time during any period of absence in which the sick leave bank is utilized.

(d) Donated hours held in the sick leave bank shall be maintained in a separate account from the accrued sick, personal and vacation time of Matthew McRae.

(e) After Matthew McRae returns to active duty, any hours remaining in the sick leave bank shall be available for use by Matthew McRae for absences related to continuing care required by the illness or disability that necessitated the establishment of the sick leave bank, as determined by the department.

(f) If Matthew McRae terminates employment with the department or retires, any remaining time in the sick leave bank shall be transferred to the extended illness leave bank.

(g) Sick leave bank days shall not be used for absences unrelated to the illness or disability that necessitated the establishment of the sick leave bank as determined by the department.

SECTION 2. The department of state police shall credit Matthew McRae with accrued sick, personal, vacation time and any pension benefit or other post-employment benefit that Matthew McRae would have earned or accrued under applicable contractual provisions or laws during any period of absence, beginning October 3, 2023, in which the sick leave bank established under chapter 49 of the acts of 2023 was utilized. Any accrued time already credited to Matthew McRae for any portion of said period shall not be duplicated.

30 SECTION 3. Section 1 shall take effect upon passage of this act.

31 SECTION 4. Section 2 shall take effect as of October 3, 2023.